

25NNCV08939 25NNCV08939

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 25NNCV08939 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 1

Date: August 21, 2026

Case No: 25NNCV08939 Trial Date: Not yet set

Case Name: Al-Jamal v. Qatar Airways Group, et al.

MOTION TO VACATE DEFAULT

[CCP § 473 subd. (b)]

Moving Party: Defendant, Qatar Airways Group

Responding Party: Plaintiffs, Aya Al-Jamal, Abdelrahman Al-Jamal, Emaan Al-Jamal, and Omar Al-Jamal, by and through their guardian ad Litem, Mohammad Al-Jamal

RELIEF REQUESTED:

Vacate the default entered against Defendant Qatar Airways Group

CAUSES OF ACTION: from Complaint

1) Violation of the Montreal Convention

2) Negligent Misrepresentation

3) Fraud by Omission / Fraudulent Concealment

4) Negligence

5) Breach of Written Contract

SUMMARY OF FACTS:

The Complaint alleges that on July 3, 2022, Aya Al-Jamal, Abdelrahman Al-Jamal, Emaan Al-Jamal, and Omar Al-Jamal (collectively, "Plaintiffs") boarded a flight from Los Angeles to Amman, Jordan, via Doha, on Qatar Airways flights QR742 and QR404. During flight QR742, due to another passenger's medical emergency, the pilot diverted to Reykjavik, Iceland. The diversion increased the scheduled 15-hour flight to approximately 20 hours and caused Plaintiffs to miss their connecting flight. Upon arriving in Doha, defendant Qatar Airways Group ("Defendant") told Plaintiffs that they had exceeded the maximum number of hotel vouchers, thus forcing Plaintiffs to sleep on the airport floor overnight while they waited for their rebooked connecting flight. Mohammad Al-Jamal, Plaintiffs' parent, submitted compensation claims on behalf of Plaintiffs, however Defendant has refused to provide compensation.

ANALYSIS:

CCP section 473 subdivision (b) provides for both discretionary and mandatory relief from a judgment, dismissal, and/or order or other proceeding taken against a party through his or her mistake, inadvertence, surprise, or excusable neglect. (CCP § 473, subd. (b) [mandatory relief more narrowly targeted to defaults, default judgments, and dismissals]; *Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 302.)

"A motion for relief under section 473 is addressed to the sound discretion of the trial court and an appellate court will not interfere unless there is a clear showing of an abuse. [Citation.] The statute is remedial and should be liberally applied to carry out the policy of permitting trial on the merits, but the moving party has the burden of showing good cause. [Citations.]" (*David v. Thayer* (1980) 133 Cal.App.3d 892, 904-905.)

The mandatory provision of section 473, subdivision (b), states that "the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect."

Defendant brings this motion to vacate the default entered against it on March 11, 2026 on the grounds that the default was entered due to the mistake and inadvertence of Defendant's counsel. The motion is supported by counsel's declaration. Counsel states that at the time of service, the handling attorney at the time was in the process of transferring to a different department, disrupting her ordinary correspondence-review protocols. (Kahf Decl., ¶ 4.) Moreover, Defendant's counsel asserts that shortly after service, Defendant's working hours were reduced in accordance with legal requirements during the month of Ramadan, and that thereafter, the war with Iran started, resulting in significant operational disruption to Defendant and its legal department. (Kahf Decl., ¶¶ 5-6.)

Plaintiff argues that Defendant's counsel's declaration does not sufficiently establish that the default was the result of counsel's inadvertence or excusable neglect. (Opp., pp. 2-4.) This argument is unavailing. The affidavit need only attest to the attorney's mistake, inadvertence, surprise, or neglect in causing the default or default judgment—the reasons for it need not be explained. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439.) Attestation that one of these reasons existed is sufficient to obtain relief unless the trial court finds that the dismissal did not occur because of these

reasons. (Graham v. Beers (1994) 30 Cal.App.4th 1656, 1660.) The declaration here is sufficient.

The Court finds that the dismissal was the result of Defendant's counsel's mistake, inadvertence or excusable neglect. The motion was timely filed within six months of the entry of default. In addition, the motion is accompanied by counsel's sworn affidavit attesting to the mistake and a copy of the proposed Answer. (Mot., Attach. 1.)

Thus, the motion is GRANTED.

RULING:

Defendant Qatar Airways Group's Motion to Vacate Default is GRANTED.

Defendant is ordered to file an answer to the Complaint within 10 days of this order.

Plaintiff's Evidentiary Objections to the Declaration of Nicole Poltash:

Nos. 1-3: OVERRULED

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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